

when the case
is in the
Master's office.

Orders, it shall appear to the Master that some persons not already parties ought to attend, or to be enabled to attend the proceedings before him, he is to be at liberty to order the same; and thereupon the plaintiff may sue out a writ of subpoena, requiring the persons named to appear to the writ, and such persons are thereupon to be named and treated as defendants to the suit, and bound thereby as other parties.

VI.
Form of pro-
cess.

Such last mentioned writ of subpoena is to be in the form and to the effect in that behalf set forth in Schedule D, hereunder written, with such variations as circumstances may require.

The following is the form :—

IN CHANCERY.

CANADA.

Victoria, &c.

[*L.S.*] To _____ Greeting,

Whereas A. B. hath caused to be filed a bill against C. D., praying (*set forth the prayer of the bill*); and whereas by an Order made in the said cause, dated the _____ day of _____, it was ordered (*set out the ordering part of the Order*); and whereas Mr. _____, the Master to whom the said Order stands referred, hath by Order, dated the _____ day of _____, directed that you should be a party to the said cause, and to be served with a writ of subpoena therein; therefore we command you that within _____ days after service of this writ upon you, exclusive of the day of such service, you do cause an appearance to be entered for you in our Court of Chancery of Upper Canada, and that you do attend the proceedings in the said cause as a party defendant thereto, and do and observe such things as are by our said Court ordered and directed in the said cause; and herein fail not.

Witness, &c.

The following memorandum to be placed at foot :—
Appearance to be entered at the Registrar's office, at Osgoode Hall in the City of Toronto (or at the office of Deputy Registrar [the name of the Deputy Registrar resident in the same county, with the Deputy Master to whom the cause stands referred] in the City of _____, in the County of _____); and, if you neglect to appear, the proceedings will be carried on without further notice to you.

VII.
Parties served,
may attend in
Master's office.

The persons served with such last mentioned subpoena having appeared are to be at liberty to attend, and to be

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